

Trademark Filing Brief — Sankofa Twi

Prepared as a working brief to take to an IP attorney, or to guide a self-filing. This is general information, not legal advice. Fees and rules are current as of July 2026 and should be re-checked at filing.

1. Applicant (owner of the mark)

- **Name:** Lourette Osei Bonsu (individual / sole proprietor)
- **Address:** Carrer de Maignon 34, 08024 Barcelona, Spain
- **Tax ID (NIE):** Y0153486K
- **Email:** sankofa@aparato.ai
- *(If you later form a company, file in the company's name instead — or assign the mark to it. Decide the owner before filing; changing it later costs time and money.)*

2. The mark(s) to register

File **two marks** for the strongest, most flexible protection:

1. **Word mark:** SANKOFA TWI (standard characters — protects the name in any font/colour).
2. **Figurative (logo) mark:** the gold Sankofa Adinkra glyph + “Sankofa Twi” wordmark (your app icon / favicon lockup). Supply as a clean PNG/JPG.

Important distinctiveness caveat: “Twi” is the name of the language you teach, so an examiner may treat it as **descriptive** for a Twi-learning app; “Sankofa” is a widely used Akan cultural term. This means: - The **word mark** may draw an objection or require **disclaiming “TWI”** (i.e. you don't get exclusive rights to the word “Twi” alone). - The **figurative/logo mark is more distinctive and more likely to register cleanly**. If budget is tight, prioritise the logo mark.

3. Goods & services (Nice Classification)

File in these two core classes:

- **Class 9 — software.** *Downloadable mobile application software for learning the Twi/Akan language; downloadable educational software featuring language instruction; downloadable software using a device camera to identify objects and teach their names in a foreign language.*
- **Class 41 — education.** *Education services, namely providing online courses of instruction in the Twi/Akan language; providing online non-downloadable instructional materials, quizzes and audio for language learning; entertainment services in the nature of gamified language-learning content.*

*Optional third class if budget allows: - **Class 42 — SaaS/tech.** Providing temporary use of non-downloadable software for language learning (if you position the app as a cloud service rather than only a downloadable app). For most app businesses, Classes 9 + 41 are sufficient.*

4. EUIPO vs USPTO — trade-offs

Factor	EUIPO (EU trade mark)	USPTO (US)
Territory	All 27 EU countries in one filing (incl. Spain, your home base)	United States only
Why it matters for you	Home market + large EU diaspora (UK is <i>not</i> EU — note separately)	Huge Ghanaian/African diaspora market; App Store/Play reach
Use requirement at filing	None — you can register without using it yet (but vulnerable to cancellation for non-use after 5 years)	Yes — must show use in commerce, or file “intent to use” and prove use later (specimen required)
Base fee (1 class, online) Two classes (9 + 41)	€850; +€50 for 2nd class; +€150 each further class ≈ €900	\$350 per class ≈ \$700 (+ ~\$150/class later for the Statement of Use on intent-to-use filings)
Examination strictness	Moderate; checks absolute grounds (descriptiveness)	Stricter on descriptiveness + specimen quality
Timeline (smooth case)	~4–6 months	~8–14 months

Recommended sequence for your situation: 1. **File EUIPO first** (home market, Spain-based, no use requirement) — logo mark + word mark, Classes 9 & 41. 2. **Add USPTO** if/when you push the US diaspora market — file as “**intent to use**” now to lock a priority date, prove use once the app is live in the US store. 3. **Consider the Madrid Protocol (WIPO)** later: use your EU registration as the base to extend to the US, UK, Canada, etc. in one application — cheaper than separate national filings if you want several countries.

UK note: Post-Brexit, an EUTM does **not** cover the UK. Given the large UK-Ghanaian community, budget a separate **UKIPO** filing (~£170 online, 1 class; +£50/class) if the UK matters to you.

5. Before you file — clearance search

Run a knock-out search for conflicting marks (an attorney will do a fuller one): - **EUIPO eSearch plus / TMview** — search “Sankofa”, “Sankofa Twi” in Classes 9 & 41. - **USPTO trademark search** (tmsearch.uspto.gov) — same terms. - Check app stores and domains for existing “Sankofa” learning apps.

“Sankofa” is used by many businesses across sectors, so expect existing marks — the key is whether any are confusingly similar **in your classes (software/education)**.

6. What to hand the attorney (checklist)

- ☐ Owner details (Section 1) — confirm individual vs company.
- ☐ Word mark text: SANKOFA TWI.
- ☐ Logo file: high-res PNG of the icon + wordmark lockup.

- ☐ Classes + goods/services wording (Section 3).
- ☐ Territories: EU (+US intent-to-use? +UK?).
- ☐ A specimen for US use (e.g. app-store listing screenshot) when required.
- ☐ Budget decision: logo-only vs logo + word mark; number of classes/territories.

7. Rough all-in budget

- **EU, DIY, logo mark, 2 classes:** ~€900 official fees.
- **EU, with attorney, 2 marks/2 classes:** ~€1,500–2,500 total.
- **US intent-to-use, 2 classes, DIY:** ~\$700 now + ~\$300 later (Statement of Use).
- **Add UK:** ~£220.

Highest-value single move: EUIPO **figurative (logo) mark**, Classes 9 + 41. It protects your brand in your home market at the lowest risk of a descriptiveness rejection.

Cross-check every fee and requirement on the official sites at filing time (euipo.europa.eu, uspto.gov, gov.uk/ipo). Consider a 30-minute consult with a trademark attorney before filing — the classification wording and the “Twi” descriptiveness issue are exactly where DIY filings go wrong.